

Dodda Kaale Mounika vs N I L on 9 August, 2021

Author: C.Praveen Kumar

Bench: C.Praveen Kumar

THE HONOURABLE SRI JUSTICE C.PRAVEEN KUMAR
AND
THE HONOURABLE SRI JUSTICE B.KRISHNA MOHAN

CIVIL REVISION PETITION No.826 OF 2021

ORDER:

- (Per Hon'ble Sri Justice C.Praveen Kumar) The present Civil Revision Petition came to be filed under Article 227 of the Constitution of India seeking a direction to the learned IV Additional District & Sessions Judge-cum Judge, Family Court, Vijayawada, to take up F.C.O.P.No.558 of 2020 for recording the statements of the petitioners and for early disposal of the FCOP.

A perusal of the material placed before the Court would show that both the petitioners have filed F.C.O.P.No.558 of 2020, under Section 13-B of the Hindu Marriage Act, 1955, and Section 7 of Family Courts Act, 1984, seeking divorce by mutual consent. It is further stated in the grounds of revision that both the petitioners are living separately since January, 2020.

The learned counsel for the petitioners submits that the FCOP is not being taken up due to the prevailing pandemic and the statements of the petitioners are also not being recorded though the FCOP was filed in the year 2020.

As the parties have filed FCOP in the year 2020 seeking divorce by mutual consent and since January, 2020 both of them are living separately, we direct the IV Additional District & Sessions Judge-cum-Judge, Family Court, Vijayawada, to take up the matter virtually, or if possible physically, record the statements of the petitioners and pass orders in accordance with law, within a period of two weeks from the date of receipt of a copy of this order.

Accordingly, the Civil Revision Petition is disposed of. There shall be no order as to costs.

Learned counsel for the petitioners shall place on record a copy of this order before the concerned Court.

Miscellaneous petitions pending, if any, in this Civil Revision Petition shall stand closed.

----- JUSTICE C.PRAVEEN KUMAR

JUSTICE B.KRISHNA MOHAN 09.08.2021 Vjl